

26STCV07246 26STCV07246

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-18

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Case Number: 26STCV07246 Hearing Date: August 18, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

COPIER HEADQUARTERS, INC. dba GOODSUITE

vs.

RICHARD "PETE"

ROBBINS, et al.

Case

No.: 26STCV07286

Hearing Date: August 18, 2026

Defendants' motion to stay
proceedings and compel mediation is MOOT.

On 2/3/2026, Plaintiff Copier

Headquarters, Inc dba Goodsuite (Plaintiff) filed suit against Richard "Pete"

Robbins and MSP Blue Team, LLC (collectively, Defendants), alleging: (1) breach
of contract; (2) breach of covenant of good faith and fair dealing; (3) fraud;

(4) interference with economic advantage; (5) violations of Business and Professions Code section 17200; and (6) temporary restraining or preliminary injunction.

On 4/20/2026,
Defendants moved to stay proceedings and compel mediation.

Discussion

Defendants

seek to stay proceedings and compel mediation, pursuant to the terms of Asset Purchase Agreement which requires that any and all disputes arising under the Agreement be mediated before resorting to litigation.

Indeed,
Section 9.3.1(a) of the Asset Purchase Agreement provides:

Dispute

Resolution. The parties agree that any and all disputes arising between them under the terms of this agreement shall first be mediated by mutually acceptable mediator. If the parties are unable to agree upon mediator, the parties may then contact any third-party reputable mediation companies, who may appoint a mediator to mediate the matter. The cost of mediation shall be borne equally by the parties.

In
opposition, Plaintiff argues that Defendants do not identify any law pursuant to which the court may summarily compel the parties to attend mediation, and that mediation is generally presumed to be voluntary.

Indeed, the
authority that Defendants invoke for the proposition that mediation agreements are subject to judicial orders of specific performance by noticed motion do not stand for the position advanced. One addressed ADR clauses in construction contracts subject to special statutory enforcement procedures not applicable here. (See *The McCaffrey Group, Inc. v. Superior Court* (2014) 224 Cal.App.4th 1330, 1345 [addressing motions to compel mediation and stay proceedings per pre-litigation dispute agreements authorized by Right of Repair Act and Civil Code § 930]), while another endorsed the enforceability of a mediation requirement—not through a motion seeking specific performance, but as

a condition precedent to an award of attorney fees, justifying the denial of a motion for same. (See *Frei v. Davey* (2004) 124 Cal.App.4th 1506, 1512.)

While

Defendants also cite federal cases for the proposition that failure to comply with a contract making mediation a condition precedent to suit “warrants dismissal,” federal authority is not applicable here and Defendants do not bring a motion for such relief.

More

importantly, the parties have already agreed to participate in mediation, which is reflected in the Notice of the Parties' Agreement to Mediate, filed on 7/14/2026. As such, even assuming the Court had the power to compel mediation, the request would be moot.

Based

on the foregoing, Defendants' motion to stay proceedings and compel mediation is moot.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)
633-0517.